

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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LAMEEK S. DEAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
WILLIAM HELBOCK (Shield No. 01834), NYPD
OFFICERS JOHN and JANE DOE #'s 1-11 (names and
numbers unknown at this time), and Other Unidentified
members of the New York City Police Department
("NYPD"),

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
New York County
as the Place of Trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 16, 2024

Respectfully submitted,

/s/ *Rachelle Kredentser*

Rachelle Kredentser, Esq.
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY
10007

NYPD DETECTIVE WILLIAM HELBOCK (Shield No. 01834), Manhattan Detective Squad,
Midtown North Precinct, 306 West 54 Street, New York, NY 10019

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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LAMEEK S. DEAN,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
WILLIAM HELBOCK (Shield No. 01834), NYPD
OFFICERS JOHN and JANE DOE #'s 1-11 (names
and numbers unknown at this time), and Other
Unidentified members of the New York City Police
Department ("NYPD"),

Defendants.

-----X
Plaintiff **Lameek Dean**, hereinafter Mr. Dean or Plaintiff, by his attorney, RACHELLE KREDENTSER,
ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Defendants and their agents unlawfully stopped, searched, and Plaintiff. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police Defendants subjected him to, among other things, assault, battery, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, and malicious prosecution, and there was an implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an

award of costs and attorney's fees and such other relief as the Court deems just and proper.

II. PARTIES

2. Plaintiff Mr. Lameek Dean, hereinafter "Plaintiff," is a resident of Nassau County, New York.
3. Defendant City of New York ("Defendant City") is a municipal corporation organized under the laws of the State of New York, which violated Plaintiff's rights as described herein. Defendant City of New York is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department ("NYPD").
4. Defendant William Helbock is a detective in the NYPD's Manhattan Detective Squad. Detective Helbock's assigned shield number is 01834. Defendant Helbock was at all times relevant herein an officer, employee, and agent of the NYPD.
5. Defendant Helbock is being sued in his individual and official capacities.
6. Defendant Officers John and Jane Doe's 1-11, as well as the unidentified members of the NYPD, and were at all times relevant herein officers, employees, and agents of the NYPD.
7. Defendant Officers John and Jane Doe #'s 1-11,¹ as well as the unidentified members of the NYPD, are being sued in their individual and official capacities.

¹ Hereinafter, unless otherwise stated, "Defendant Officers" and "individual Defendants" will refer to Defendant Helbock, Defendants John and Jane Does 1-11, and unnamed Defendant officers.

8. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD and otherwise performed and engaged in conduct incidental to the performance of their functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
9. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon Defendant City of New York in compliance with Municipal Law Section 50.
10. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and Defendant City of New York has failed to pay or adjust the claim.
11. Defendant City of New York held a 50(h) hearing examination of Plaintiff on October 13, 2023.
12. Plaintiff demands a trial by jury.

III. STATEMENT OF FACTS

13. In late summer or early September 2019, Defendant Helbock and/or other Defendant Officers called Plaintiff and asked him to come to the Northern Manhattan NYPD Precinct. Defendants informed Plaintiff that they thought he may have information that would be useful in an ongoing investigation.
14. Police did not have a warrant for Plaintiff's arrest.
15. On September 12, 2019, Plaintiff, along with his mother, went to the precinct in Midtown North, New York, New York.

16. Upon Plaintiff's arrival at the precinct, Defendant Helbock and other Defendant officers immediately arrested Plaintiff.
17. Defendants John Doe officers and Defendant Helbock confiscated Plaintiff's phone. To date, the phone has never been returned to Plaintiff.
18. Defendants John Doe officers and Defendant Helbock handcuffed Plaintiff to a chair for at least eight hours.
19. Plaintiff's wrists swelled and he suffered numbness in his hands, including his fingers. These injuries were caused by his prolonged time in handcuffs that were fastened in an unnecessarily tight manner.
20. Plaintiff told Defendant Officers that the handcuffs were too tight. Defendant Officers did not loosen or adjust the handcuffs.
21. Plaintiff was denied water while detained at the precinct.
22. Plaintiff requested medical treatment at the precinct and central booking, for injuries, including but not limited to his hand injuries, but Defendant Officers failed to provide it.
23. At some point Plaintiff learned he was being charged with Grand Larceny for allegedly stealing a credit card from an unknown person.
24. The complaining witness alleged that on August 2, 2019, at about 9:35 PM, her wallet was taken without her permission from her purse at 800 7th Avenue in Manhattan, New York.
25. The complaining witness and her son told Defendant Officers conflicting statements about what allegedly occurred at the time of the alleged theft.
26. Plaintiff never stole a credit card from the complaining witness.
27. Plaintiff was never at the location where the wallet was allegedly taken.

28. Plaintiff has never been in contact with the complaining witness.
29. Prior to Plaintiff's arrest, Defendant Officers had possession of video footage demonstrating Plaintiff was not at the scene of the alleged crime. The video footage depicts another man, who does not look like Plaintiff.
30. Upon information and belief, the complaining witness recovered her wallet and credit cards the same night they were allegedly stolen.
31. At the first court appearance, Plaintiff informed the Court and District Attorney of his intention to testify before the Grand Jury.
32. Before Plaintiff had the opportunity to testify before the grand jury, a warrant was issued for his arrest for failing to appear in Court. Plaintiff never missed a court date.
33. In the alternative, Plaintiff missed a Court date that was rescheduled without notifying him.
34. As a result, Plaintiff's case was presented without having the opportunity to testify before the Grand Jury. Plaintiff was subsequently indicted.
35. Plaintiff filed a *pro se* motion to set aside the indictment for failure to allow him to testify before the Grand Jury.
36. Defendants Officers relied on evidence they knew to be insufficient, unconvincing, and faulty to justify Plaintiff's arrest. Upon information and belief, Defendant Officers recovered a piece of paper that fell out of an unknown person's bag. This dirty and torn paper bore a date of 2017 and apparently had Plaintiff's name on it. An unknown person brought this paper to the precinct and Defendant Officers used it to justify Plaintiff's arrest.

37. Upon information, Defendant Officers made no attempt to investigate the evidentiary value of the paper.
38. Upon information and belief, there was no other evidence connecting Plaintiff to this alleged crime.
39. Defendants conducted a photo array. In the array, each pictured individual besides Plaintiff had a picture with their head and shoulders displayed. However, Defendants manipulated the array by having Plaintiff's face enlarged and expanded in the frame, so as to highlight that particular photo.
40. In the first photo array, the complaining witness chose someone's photo other than Plaintiff's. Defendants tried again and on the second suggestive photo array, the complaining witness chose Plaintiff's differentiated photo.
41. As a result of this warrant and arrest, Plaintiff was held in custody on Riker's Island for about five months. Plaintiff was then bailed out and then held in custody at Nassau County Correctional Facility (NCCF) for about seven months for the probation violation. Upon information and belief, the probation violation was based solely on this arrest. This period of custody occurred during the height of the COVID-19 pandemic.
42. Around 2020, while detained on Riker's Island, Plaintiff was injured by another incarcerated inmate. Plaintiff was punched repeatedly on his head, and his head swelled. Plaintiff also suffered with a dental injury.
43. While held in NCCF, Plaintiff fell and hit his head and his shoulder popped out of the socket.
44. Plaintiff was finally released from NCCF custody in 2021.
45. Plaintiff missed work as a result of his arrest.

46. On February 21, 2023, more than three and a half years after Plaintiff's arrest, all charges against Plaintiff were dismissed and sealed.
47. Plaintiff incurred thousands of dollars in attorney's fees and bail fees because of his false arrest and detention.
48. Plaintiff incurred medical costs as a result of his false detention.
49. Plaintiff suffered emotional injuries as a result of his false arrest and detention. Such injuries included mental anguish, shock, fright, apprehension, embarrassment and humiliation.

IV. CAUSES OF ACTION

A. State Causes of Action

Count 1: ASSAULT

50. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 49 with the same force and effect as if more fully set forth herein.
51. Defendant Officers, including Defendant Helbock, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff.
52. Such offensive contact included the unlawful arrest, excessively tight handcuffing, and handcuffing to a chair for eight hours.
53. Individual Defendants threatened such contact via their actions and/or statements.

54. Individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York, via the New York City Police Department, which are therefore responsible for their conduct.
55. Defendant City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 2: BATTERY

56. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 49 with the same force and effect as if more fully set forth herein.
57. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to Plaintiff and caused such battery. This act was committed without justification and was committed by Defendant Officers.
58. Such acts included, but are not limited to, Defendant Officers grabbing Plaintiff to arrest him, unlawful arrest, tight handcuffing, and handcuffing to a chair for eight hours.
59. Individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
60. Defendant City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 3: FALSE ARREST AND FALSE IMPRISONMENT

61. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 49 as if fully set forth herein.
62. The acts and conduct of Defendant Officers, including Defendant Helbock, constitute false arrest and false imprisonment under the laws of the State of New York. Individual Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
63. Defendants did not have probable cause for such an arrest and imprisonment.
64. Individually named Defendants, as well as unnamed Defendants, were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department, which are therefore responsible for their conduct.
65. Defendant City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 4: MALICIOUS PROSECUTION

66. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 49 with the same force and effect as if more fully set forth at length herein.
67. The acts and conduct of the individual Defendants constitute malicious prosecution under the laws of the State of New York.
68. Individual Defendants commenced and continued a criminal proceeding against Plaintiff.
69. There was no probable cause to commence or continue the criminal proceeding.

70. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted, namely, that Plaintiff had stolen a credit card.
71. Defendant officers provided false and/or manipulated information to the District Attorney's office in order to move the criminal proceeding forward. Such false or manipulated evidence included the suggestive photo array.
72. The prosecution and criminal proceedings terminated favorably for Plaintiff on February 21, 2023.
73. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
74. Defendant officers acted with malice.
75. Individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department, which are therefore responsible for their conduct.

**Count 6: DEFENDANT CITY NEGLIGENTLY HIRED, TRAINED, AND
SUPERVISED ITS EMPLOYEES**

76. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 49 with the same force and effect as if more fully set forth at length herein.
77. Defendant City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.
78. Upon information and belief, such negligent training may include but is not limited to failing to adequately train NYPD officers about legal requirements of probable cause. Such

failure to supervise may include but is not limited to failing to provide adequate supervision of the evidence creation and gathering process, and a failure to provide consequences for the manipulation of and creation of falsified evidence.

Count 7: FAILURE TO INTERVENE

79. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 49 with the same force and effect as if more fully set forth at length herein.
80. Individual Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, detention, and malicious prosecution.
81. Individual Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
82. As a result of the foregoing, Plaintiff was subjected to illegal search and undue force upon his person over the course of his false arrest.
83. Defendant City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 9: NEGLIGENCE

84. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 49 with the same force and effect as if more fully set forth at length herein.
85. Individual Defendants owed a duty of care to Plaintiff.

86. Individual Defendants breached that duty of care by subjecting Plaintiff to unjustified illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
87. Defendants breached that duty of care by subjecting Plaintiff to an unjustified malicious prosecution and resulting deprivation of liberty and unlawful detention.
88. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
89. All of the foregoing occurred without any fault by Plaintiff.
90. Defendant City, as the employer of the Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 10: INTENTIONAL/NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

91. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 49 with the same force and effect as if more fully set forth at length herein.
92. By the actions described herein, Defendant Officers, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently and/or intentionally caused severe emotional distress to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
93. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
94. Defendant City, as the employer of Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

B. Defendants' Violations of Federal Constitutional Rights under 42 U.S.C. § 1983

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
96. All of the aforementioned acts were carried out under the color of state law.
97. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
98. The acts complained of were carried out by the Defendants in their capacities as NYPD police officers with all the actual and/or apparent authority attendant thereto.
99. The acts complained of were carried out by the aforementioned individual Defendant Officers in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant City of New York and the New York City Police Department, all under the supervision of ranking officers of said department or office.
100. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

Count 11: VIOLATION OF THE FOURTH AMENDMENT - USE OF EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

101. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
102. Defendants used excessive force in violation of Plaintiff's rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.

103. Individual NYPD Defendant officers committed the intentional torts of assault and battery against Plaintiff by unlawfully arresting Plaintiff and by tightly handcuffing Plaintiff.
104. In so doing, the conduct of Individual NYPD Defendant officers went well beyond the reasonable force necessary to detain and arrest Plaintiff, and the amount of force that a reasonable officer under the same or similar circumstances would use.
105. Plaintiff told individual NYPD Defendant officers that the handcuffs were too tight.
106. Individual NYPD Defendant officers did not fix the handcuffs. They did not provide medical attention.
107. At the time of the force, Plaintiff was complying with Defendants and did not act in a manner that would any way justify the use of physical force.
108. As a result of the foregoing, Plaintiff was the victim of the torts of assault and battery resulting in physical and emotional injuries. The physical injuries included swelling and numbness to Plaintiff's hands.

Count 12: VIOLATION OF FOURTH AMENDMENT FALSE ARREST UNDER 42 U.S.C. § 1983

109. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
110. As a result of the aforesaid conduct by Defendant Officers, Plaintiff was subjected to an illegal, improper, and false arrest by such Defendants, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege, or consent.
111. Defendants did not have probable cause to arrest Plaintiff.

112. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**Count 13: VIOLATION OF THE FOURTH AMENDMENT UNLAWFUL SEARCH
UNDER 42 U.S.C. § 1983**

113. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
114. Plaintiff was searched while Defendant Officers arrested him without an individualized reasonable suspicion that Plaintiff had committed any crime.
115. As a result of the aforesaid conduct by individual Defendants, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause as set forth in the Fourth, Fifth, and Fourteenth Amendments, and incorporated against the States in the Fourteenth Amendment to the Constitution of the United States.
116. Specifically, Defendant Officers lacked probable cause and manipulated evidence and arrested Plaintiff for plainly false allegations that Plaintiff stole a credit card.
117. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**Count 14: DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C.
§ 1983**

118. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
119. Defendant Officers created false evidence or manipulated the evidence gathering process against the plaintiff, alleging that Plaintiff committed the crime of Grand Larceny. Namely,

Defendant officers created a suggestive photo array where Plaintiff's photo was noticeably different from the other photos.

120. Defendant Helbock and/or other Defendant Officers misled the prosecutors by creating false evidence or manipulating the creation of evidence against the Plaintiff and thereafter providing false statements throughout the criminal proceedings.
121. Defendant Officers forwarded false evidence and false information to prosecutors—namely, the Defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff stole a credit card.
122. Further, upon information and belief, Defendant Officers failed to provide exculpatory evidence to prosecutors, including but not limited to the results of the complaining witness's first photo array, wherein she did not identify Plaintiff.
123. In manipulating the investigation process, and creating false evidence against Plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, Defendant Officers violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth Amendment, incorporated against the states by the Fourteenth Amendment of the United States Constitution.
124. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

Count 15: VIOLATION OF THE EIGHTH AMENDMENT'S PROHIBITION AGAINST CRUEL AND UNUSUAL PUNISHMENT UNDER 42 U.S.C. § 1983

125. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

126. Defendant Officers kept Plaintiff handcuffed too tightly to a chair for approximately eight hours.
127. Plaintiff told Defendant Officers of the harm being caused to his hands.
128. Defendant Officers failed to act to prevent the harm and continued the unnecessary and wanton infliction of pain and harm.
129. Plaintiff was not resisting nor was he threatening or acting in any manner where such unusual restraint was necessary. Plaintiff was being held pre-arraignment.
130. Furthermore, the resulting holding in custody because of this false arrest for years is itself cruel and unusual.
131. Each of the penalties enforced are disproportionate, especially given Plaintiff's false arrest and unlawful detention.

Count 16: MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

132. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
133. Defendant Officers misrepresented and falsified evidence provided to the Manhattan District Attorney's Office, including unreasonable false allegations that Plaintiff committed Grand Larceny.
134. Defendant Officers did not make a complete and full statement of facts to the District Attorney.
135. Defendant Officers withheld exculpatory evidence from the District Attorney.
136. Defendant Officers were directly and actively involved in the initiation of criminal proceedings against Plaintiff.
137. Defendant Officers lacked probable cause to initiate criminal proceedings against Plaintiff.

138. Defendant Officers acted with malice in initiating criminal proceedings against Plaintiff.
139. Defendant Officers were directly and actively involved in the continuation of criminal proceedings against Plaintiff.
140. Defendant Officers lacked probable cause to continue criminal proceedings against Plaintiff.
141. Defendant Officers acted with malice in continuing criminal proceedings against plaintiff.
142. Defendant Officers knowingly misrepresented evidence throughout all phases of the criminal proceedings.
143. Specifically, Defendant Officers made a suggestive photo array, knew there was a video exculpating Plaintiff, and lacked reasonable probable cause for Plaintiff's arrest.
144. Notwithstanding the fraudulent conduct of Defendant Officers, the criminal proceedings were terminated in Plaintiff's favor on February 21, 2023.
145. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.
146. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause and without the benefit of a proper judicial process.

Count 17: FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

147. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
148. Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence by committing acts including false arrest, unlawful

imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.

149. Defendants further violated Plaintiff's constitutional rights when they failed to intervene and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
150. As a result of the Defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

Count 18: MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

151. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
152. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
153. The aforementioned customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. fabricating and/or manipulating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. failing to intervene when officers are unlawfully detaining and arresting individuals without probable cause; and,
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
154. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
155. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
156. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
157. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

158. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by police officers and were directly responsible for the violation of the Plaintiff's constitutional rights.

159. The acts complained of deprived the Plaintiff of his rights, including but not limited, his right:

G. Not to be deprived of liberty without due process of law;

H. To be free from seizure and arrest not based upon probable cause; and

I. Not to have summary punishment imposed upon them.

WHEREFORE, Lameek Dean, Plaintiff, demands a judgment against Defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law. Specifically, Plaintiff requests that the Court

A. declare that Defendants violated Plaintiffs rights under the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments;

B. award compensatory and punitive damages for the violation of their constitutional rights;

C. award punitive and compensatory damages for tortious claims;

D. award plaintiffs costs and a reasonable attorney's fee pursuant to 42 U.S.C. § 1988; and

E. grant or award other such relief as this Court deems just and proper.

Dated: New York, New York
May 16, 2024

Respectfully submitted,

By: /s/ Rachelle Kredentser
Rachelle Kredentser, Esq.
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY
10007

NYPD DETECTIVE WILLIAM HELBOCK (Shield No. 01834), Manhattan Detective Squad,
Midtown North Precinct, 306 West 54 Street, New York, NY 10019

ATTORNEY'S VERIFICATION

I, **RACHELLE KREDENTSER**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **BROWNSTEIN LEGAL, P.C.**, I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files.

DATED: New York, New York
May 16, 2024

/s/ *Rachelle Kredentser*
Rachelle Kredentser, Esq.